

such an act is not regularly within their province, and it is incumbent on the persons taking a lease from them to show that it was called for by the interests of the parties entitled to the property (*e*).

[11. **May not give option to purchase.**—And executors and administrators equally with trustees cannot bind the trust estate by a proviso in a lease that the lessee shall during the term have an option of purchasing the property at a fixed price (*f*); for it is the duty of the trustees to exercise their discretion at the time of sale as to whether the terms are in the circumstances as then existing beneficial to the *cestuis que trust*. And on the same principle a covenant by a trustee in a lease to renew on the payment of a fixed fine was held to be a breach of trust and not enforceable by the lessee (*g*).]

12. **Trust for sale will not in general authorise a mortgage.**—A trust for sale, if there be nothing to negative the settlor's intention to convert the estate absolutely, will not authorise the trustees to execute a *mortgage* (*h*). But where an estate is devised to trustees, *charged with debts*, the subject thereto, upon trust for certain parties, so that a sale, though it may be required, is not the testator's object, the trustees may, for the purpose of paying the debts, more properly mortgage than sell (*i*). "A power of sale out *and out," observed Lord St. Leonards, "for a pur- [*426] pose or with an object beyond the raising of a particular charge, does not authorise a mortgage: but where it is for raising a particular charge, and the estate is settled subject to that charge, then it may be proper, under the circumstances, to raise the money by mortgage, and the Court will support it as a conditional sale, as something within the power, and as a proper mode of raising the money" (*a*).

(*e*) *Keating v. Keating*, Ll. & G. Rep. t. Sugden, 133; [*Oceanic Steam Navigation Company v. Sutherland*, 16 Ch. D. 236.]

[(*f*) *Oceanic Steam Navigation Company v. Sutherland*, 16 Ch. D. 236; *Clay v. Rufford*, 5 De G. & Sm. 708.]

[(*g*) *Bellringer v. Blgrave*, 1 De G. & Sm. 63.]

(*h*) *Haldenby v. Spofforth*, 1 Beav. 390; *Stroughill v. Anstey*, 1 De G. M. & G. 635; *Page v. Cooper*, 16 Beav. 396; *Devaynes v. Robinson*, 24 Beav. 86.

(*i*) *Ball v. Harris*, 4 M. & Cr. 264.

(*a*) *Stroughill v. Anstey*, 1 De G.